

**LAKES TREATMENT CENTER, INC., et al v
RESORT AT LAKE TULLOCH, LLC, et al**

21CV45585

**DEFENDANT VAN'S MOTION TO COMPEL COMPLIANCE
WITH COURT ORDERS AND FOR SANCTIONS; DEFENDANT
RESORT AT LAKE TULLOCH'S MOTION FOR LEAVE TO FILE
A FIRST AMENDED CROSS-COMPLAINT**

This case stems from a property dispute between The Lakes Treatment Center, Inc. ("LTC") and Bernadette Cattaneo ("Cattaneo") (collectively, "Plaintiffs") and The Resort at Lake Tulloch, ("Resort"), Narullah Safdari ("Safdari"), Odell Tristin ("Tristin"), Michael Van ("Van"), Andreas Ambramson ("Ambramson"), and Diamond Dirt LLC ("Diamond.") Now before the Court is Van's motion to compel Tristin to pay outstanding sanctions and for the imposition of additional sanctions.

Defendant Van's Motion to Compel Compliance/Sanctions:

On January 9, 2026, the Court granted Van's unopposed motions to compel discovery responses against Safdari and Tristin (collectively, "Defendants.") The Court ordered that Tristin must produce all responsive answers to Van's Request for Production, Set One on or before January 23, 2025. Tristin and his counsel were also ordered to pay sanctions in the amount of \$3,360.00.

On June 16, 2026, Van's counsel emailed counsel for Defendants regarding the outstanding sanctions which had yet to be paid and requesting confirmation that sanctions would be paid on or before June 30, 2026. (Declaration of Michael J. Laino ("Laino Decl.") ¶ 2.) On June 18, 2026, Defendants' counsel responded that he was "working on it." (*Ibid.*) Defendants did not make any payment of the sanction awards by

June 30, 2026. (*Ibid.*) On July 1, 2026, Van's counsel followed up on the outstanding sanctions owed and his intention to seek an order from the Court to compel compliance. (*Id.* ¶ 3.) Defendants' counsel responded that his client would be stopping by at some point and he would follow up, but no follow up was made. (*Ibid.*) As of July 8, 2026 (the date of the instant motion), neither Tristin nor his attorney have made any sanctions payments to Van. (*Id.* ¶ 4.)

Plaintiff moves for an order compelling payment of the original sanctions, as well as imposition of additional sanctions in the amount of \$1,960.00.

Tristin opposes the motion. In the opposition, his counsel states that \$5,000 of \$6,030.00 in outstanding sanctions was mailed to Van's counsel on or about July 27, 2026. (Opp. p. 1.) Tristin's counsel further represents in the opposition that the remaining balance will hopefully be paid by the time of the hearing on this motion. However, Tristin objects to the imposition of any further sanctions, arguing that there is no basis in the Discovery Act for imposing sanctions on a party for failing to pay earlier issued sanctions.

The Court agrees that the Discovery Act does not specifically state that the failure to pay sanctions is a "misuse of the discovery process," which would warrant further sanctions under that section of the Code of Civil Procedure. However, the Court, has the discretion and authority to impose sanctions up to \$1,500.00 pursuant to Code Civil Procedure section 177.5 "for any violation of a lawful court order by a person, done without good cause or substantial justification."

Here, Tristin and his attorney clearly violated the Court's previous order imposing sanctions on both Tristin and his attorney, with a specified deadline for payment. Tristin's attorney does not attempt to provide good cause or substantial justification for their decision to ignore the Court's order for upwards of six months.

Thus, the **Court imposes additional sanctions in the amount of \$1,500 against Tristin and his counsel pursuant to Code Civil Procedure section 177.5.** The Court expects the full original sanction and this additional amount **to be paid forthwith**, and no later than 5:00 p.m. on Friday, August 14, 2026.

Defendant Resort's Motion For Leave to File a First Amended Cross-Complaint:

I. Background

On September 9, 2021, Plaintiffs filed their original complaint against Resort, Safdari and Tristin. Plaintiffs filed a First Amended Complaint on July 5, 2023, adding Van and Abramson and new causes of action. On August 16, 2023, by stipulation of the parties, Plaintiffs filed a Second Amended Complaint ("SAC") adding Diamond as a defendant. The SAC alleges causes of action for: 1) Breach of Lease Agreement, (2) Promissory Estoppel, (3) Trespass, (4) Intentional Misrepresentation, (5) Fraud by Concealment, (6) Interference with Contractual Relations, (7) Conspiracy, (8) Declaratory Relief, (9) Breach of Fiduciary Duty, (10) Accounting, and (11) Access to Books and Records. The SAC's fourth, fifth, sixth, and seventh causes of action are alleged against Van, and the eighth, ninth, tenth, and eleventh causes of action are alleged against Diamond.

On May 22, 2026, the Court granted Plaintiff's motion for leave to file a Third Amended Complaint ("TAC.") Resort now moves for leave to file a FACC on the grounds that many of the new claims are compulsory claims to those raised in the TAC and that the failure to plead any of the claim earlier was an error or failure made in good faith. (Code Civ. Proc. § 426.5.)

II. Legal Standard and Discussion

When a party moves to amend a pleading “courts generally should permit amendment to the complaint at any stage of the proceedings, up to and including trial. [Citations.]” (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175.) Leave to amend should be granted liberally. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489.) In ruling on such motion, the Court’s main concern is prejudice to another party. (*Ibid.*) Prejudice means more than inconvenience, but instead focuses on delay in trial, loss of critical evidence or added costs of preparation. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) The motion must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).) In ruling on a motion for leave to amend, courts generally do not consider the amended pleading’s merits. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

The Court finds a distinct measure of irony in the fact plaintiff’s arguments echo the earlier arguments made by the Defendants in unsuccessfully opposing the Plaintiffs’ motion for leave to file its TAC. First, Plaintiff argues that Resort impermissibly delayed bringing the amendment. They argue that the proposed amendments contain facts related to documents which were produced years earlier or depositions taken much earlier and should not have been brought this late and close to the trial date (February 2027). Second, Plaintiff argues that it will be severely prejudiced by the amendments because it will require significantly more discovery and the need to re-depose numerous witnesses.

Resort persuasively argues that it was unaware of many of the facts at the heart of this issue until depositions which took place in the spring and early summer of 2026. (Declaration of Daniel S. Truax (“Truax Decl.”) ¶ 7.0.) After those depositions, Resort was able to confirm the merits of its compulsory counterclaims and facts underlying those claims. The amendments are related to the facts and disputes already pled in this case. Finally, as all parties agreed to move the trial in this matter (now set for February 3, 2027) allowing the amendment does not impact any rapidly approaching trial date.

Plaintiffs have failed to show that granting the Resort leave to file a FACC will unduly prejudice them nor that the amendment is the result of unreasonable delay.

Accordingly, the Court **GRANTS the motion for leave to file a First Amended Cross-Complaint.**

(However, in doing so, the Court is cognizant of the length of the discovery disputes which have already consumed the parties and the Court's time, and the potential of more disputes arising from the amended pleadings. Accordingly, the Court puts the parties on notice that it is likely to order the appointment of a discovery referee to assist the parties in determining what additional discovery will be needed and to make the necessary limitations on type, manner, and amount of discovery to be made should the parties be unable to reach agreement outside of formal motions; should the Court take this step the parties will be assessed all fees and costs associated with the work of any such appointed discovery referee.)

The clerk shall provide notice of this ruling to the parties forthwith. Defendant Van and Defendant Resort, respectively, to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling.

PONTE v PERREIRA, JR.

23CV47125

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO INTERROGATORIES; PLAINTIFF'S MOTION TO COMPEL ATTENDANCE AT DEPOSITION

This is a quiet title action to confirm an easement over property belonging to Defendant Alfred R. Pereira, Jr. individually and as Trustee for the Alfred R. Pereira Trust ("Defendant.") Before the Court are two motions to compel brought by Plaintiff Larry E. Ponte ("Plaintiff.") The motions are unopposed.

I. Factual and Procedural Background

A. Background Facts

Plaintiff owns a lot in Calaveras County, Assessor's Parcel Number (APN) 050-008-016-000, ("Plaintiff's Lot"). Defendant owns a lot in Calaveras County, APN 050-008-043-000 ("Defendant's Lot"). Plaintiff accesses his lot by crossing an unnamed road ("Road") on Defendant's lot.

The Road departs Hogan Dam Road and travels across several lots including a lot owned by a non-party named Josh ("Josh's Lot.") Josh has not denied Plaintiff access across his lot. Plaintiff alleges that there are no other roads that lead onto Plaintiff's Lot, and that he is surrounded by other owners' parcels. Plaintiff has used the Road since 1983. At some point in December of 2023, Defendant stopped allowing Plaintiff to cross Defendant's Lot to gain access to Plaintiff's Lot.